

“Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” Civ. Code § 3294. “*Animus malus* or evil motive, then, is the central element of the malice which justifies an exemplary award.” *G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 30. “Oppression” means subjecting a person to cruel and unjust hardship in conscious disregard of his rights. *Monge v. Superior Court* (1986) 176 Cal.App.3d 503, 511.

In addition to the express allegations in the Complaint that Defendant acted with “malice, oppression, and/or fraud,” specific conduct is alleged that a trier of fact could well find amounted to conscious disregard of the Plaintiffs’ rights and/or a willful and conscious disregard of the rights or safety of Plaintiffs. See e.g. Complaint, ¶¶11-18 and 22. These allegations and the other allegations of the Complaint are sufficient to support the prayer for punitive and exemplary damages.

Disposition

The Court finds and orders as follows:

1. The Demurrer is OVERRULED.
2. The Motion to Strike is DENIED.
3. The Court shall issue the order after hearing.

14. 9:00 AM CASE NUMBER: C25-03561
CASE NAME: RENE ZAMORA VS. MONTEREY VENTURE LP
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: MONTEREY VENTURE LP
TENTATIVE RULING:

See Line 13 above.

15. 9:00 AM CASE NUMBER: L22-01760
CASE NAME: RALPH BARRIENTOS VS. KIMBERLY E. TOWER
***HEARING ON MOTION IN RE: MOTION FOR ATTORNEY’S FEES;MEMORANDUM OF POINTS**
ANDAUTHORITIES
FILED BY: BARRIENTOS, RALPH
TENTATIVE RULING:

Defendant and cross-complainant Kimberly E. Tower (“Landlord”) filed a Motion for Attorney’s Fees on January 30, 2026 (the “Motion for Attorney’s Fees”). The Motion for Attorney’s Fees was set for hearing on April 28, 2026 in Department 14.

Thereafter, the parties stipulated to the resetting of the motion for hearing in Department 34, the department that heard the trial. The Court approved that stipulation and the matter was reset for June 22, 2026 in Department 34.

The motion is opposed.

Background

Following a multi-day court trial, the Court entered judgment in favor of the Landlord and found the Landlord to be the prevailing party. See Decision after Trial issued January 8, 2026 (the “Decision after Trial”); see also, Judgment entered March 13, 2026 (the “Judgment”).

The Motion for Attorney’s Fees is supported by the Declaration of Tanner D. Brink filed January 30, 2026 (the “Supporting Declaration”).

The Supporting Declaration includes a summary of the legal services rendered and expenses incurred in the litigation of the matter. See Supporting Declaration, ¶10 and **Exhibit G** thereto. The fees sought total \$127,500.00, representing a total of 212.5 hours. *Id.*

No costs are sought by the motion. However, a separate memorandum of costs was filed by the Landlord on January 28, 2026, seeking an award of \$7,014.71.

Opposition papers were filed on April 15, 2026 by plaintiff and cross-defendant Ralph Barrientos (the “Tenant”).

Analysis

The Landlord seeks an award of attorney’s fees pursuant to the governing lease agreement. See Supporting Declaration, ¶10 and **Exhibit A** thereto (the “Lease Agreement”).

Paragraph 36 of the Lease Agreement contains a prevailing party attorneys’ fees provision:

36. ATTORNEY FEES: In any action or proceeding arising out of this Agreement, the prevailing party between Landlord and Tenant shall be entitled to reasonable attorney fees and costs, collectively not to exceed \$1,000 (or \$20,000.00 _____), except as provided in paragraph 35A.

See Lease Agreement, ¶36, Supporting Declaration, **Exhibit A**. This provision provides for recovery of reasonable attorneys fees and is capped at \$20,000 “except as provided in paragraph 35A.” *Id.*

Paragraph 35A is part of the Mediation provision of the Lease Agreement and provides:

35. MEDIATION:
A. Consistent with paragraphs B and C below, Landlord and Tenant agree to mediate any dispute or claim arising between them out of this Agreement, or any resulting transaction, before resorting to court action. Mediation fees, if any, shall be divided equally among the parties involved. If, for any dispute or claim to which this paragraph applies, any party commences an action without first attempting to resolve the matter through mediation, or refuses to mediate after a request has been made, then that party shall not be entitled to recover attorney fees, even if they would otherwise be available to that party in any such action.

See Lease Agreement, ¶35, Supporting Declaration, **Exhibit A**. This provision essentially requires mediation as a prerequisite to an award of attorneys’ fees in certain circumstances. This case was mediated prior to trial.

The Court finds that at least \$20,000 of the incurred attorneys’ fees and costs are recoverable by the Landlord pursuant to the Lease Agreement and that such fees are reasonable and the costs recoverable (as further addressed below).

Notwithstanding the \$20,000 cap, the Landlord has also sought the balance of the incurred attorneys’ fees pursuant to Code of Civil Procedure section 2033.420. See Motion for Attorney’s Fees, p. 3 *et seq.*

Under certain circumstances, a party to a civil action that fails to admit a pretrial request for admission without a reasonable basis can be ordered to pay to the propounding party the reasonable expenses incurred, including attorneys’ fees and costs, in proving the matter covered by the request, often called the “costs of proof.” Code Civ. Proc. § 2033.420(a); see CJER, *California Judges Benchbook: Civil Proceedings—Discovery* (2025) (“CJER Civ. Pro.—Discovery”), § 21.38.

An award of costs of proof involves the weighing of several factors, including:

1. Whether the matter denied was of substantial importance;
2. Whether there was a reasonable basis for the denial;
3. Whether the party making the denial knew or should have known at the time that the requested matter was of substantial importance and was true;
4. Whether there were other good reasons for the denial; and
5. Whether the responding party made a good faith effort to resolve the matter.

See Code Civ. Proc. § 2033.420(a); see also CJER Civ. Pro.—Discovery, §§ 21.38-21.39.

As the moving papers outline in detail, the Tenant denied a litany of requests for admissions (the “RFAs”) propounded on the Tenant before trial. See Motion for Attorney’s Fees, p. 3 *et seq.*; see also Supporting Declaration, ¶4 and **Exhibits B and C** thereto.

The denied RFAs went to the heart of the dispute over which the Landlord and Tenant, the condition of the leased premises and the damages and modifications caused by the Tenant.

For example, RFA No. 11 (“Admit You painted the Property without prior written consent of Propounding Party.”) was denied by the Tenant. The evidence was clear and convincing that Tenant arranged for his handyman to repaint portions of the interior of the premises. See Decision after Trial, p. 12. The issue of the extent of the interior painting by the Tenant was most certainly of substantial importance during the trial and one of the largest items of recovery found by the Court. See Decision after Trial, p. 13.

Similarly, RFA No. 38 (“Admit You buried plumbing lines underground at the Property without prior written consent of Propounding Party.”) was denied by the Tenant. The evidence at trial was overwhelming that plumbing lines were installed underground by Tenant. See Decision after Trial, p. 11-12 (“The alterations also included the running of electrical conduit and/or plumbing lines underground. The running of plumbing and electrical lines required penetrations by drilling through a retaining wall and other areas of the Premises. The extensive alterations were detailed in testimony and the exhibits admitted in evidence, including the Landlord’s inspection report.”). That such lines were buried underground was plain and obvious, including based on numerous photographs.

While no doubt some admissions were made by Tenant regarding some modifications made and other matters that were the subject of the Landlord’s RFAs, the Court concludes that a substantial portion of the costs of proof of the premises condition issues are properly recoverable by the Landlord under Section 2033.420.

These are all matters that the Tenant knew or should have known at the time that the matters were of substantial importance and were true. The Tenant has not shown that he had a good faith belief that he would prevail on those matters at trial.

However, the Court also concludes that this does not entitle the Landlord to the full \$127,500.00 in fees claimed. It is likewise evident that a not insignificant portion of the fees are attributable to the defense of the Tenant’s claims, including factual and legal issues regarding the handling of the security deposit, issues which Landlord has not shown are implicated by the denied RFAs. Indeed, there were substantial issues tried relating to the Tenant’s security deposit that have nothing to do with the subject matter of any of the denied RFAs referenced by the Landlord.

The costs of proof must also be limited in time as well. Costs of proof can be awarded only for the period after the opposing denied the request for admissions. *Yoon v. CAM IX Trust* (2021) 60 Cal.App.5th 388, 395; see CJER Civ. Pro.—Discovery, § 21.38.

The Tenant's responses were dated February 27, 2023 and verified March 2, 2023. See Supporting Declaration, **Exhibit C**. The claimed fees before the March 3, 2023 time entry total 27.2 hours (\$16,320.00). Excluding those fees, the total claimed fees are \$111,180.00. Any further costs attributable to mediation after that point must also be excluded. The claimed costs relating to the second mediation in April 2024 total 8.6 hours (\$5,160.00). \$111,180.00 less \$5,160.00 equals \$106,020.00.

The Court is familiar with the record at trial, the evidence proffered and the arguments made, including as addressed at length in the Court's Decision after Trial. Having considered those matters and the totality of the evidence before the Court, the Court concludes that at least one-third of the \$106,020.00 in claimed fees constitutes reasonable expenses incurred in proving the matters covered by the denied RFAs and are properly recoverable costs of proof. That amount totals \$35,340.00. This determination is informed by the nature and extent of the evidence received at trial and the Court's familiarity with that evidence.

Having reviewed all of the claimed attorneys' fees and the description of the work to which the claimed fees related (see Supporting Declaration, **Exhibit G**), the Court finds the **\$35,340.00** attorneys' fees to be reasonable, including in light of the legal services rendered and the nature and scope of the issues in the case. The trial court has broad authority to determine the amount of a reasonable fee. *Holguin v. Dish Network LLC* (2014) 229 Cal.App.4th 1310, 1329.

The Court further finds that the **\$7,014.71** in claimed costs were reasonable and necessary to the conduct of the litigation. No motion to tax or strike any of the costs was made by the Tenant and no specific objections have been made as to any particular cost item in the opposition papers to the pending motion.

Disposition

The Court finds and orders as follows:

1. The Motion for Attorney's Fees is GRANTED.
2. The Landlord is awarded and shall recover from Tenant attorneys' fees in the sum of **\$35,340.00**.
3. The Landlord is awarded and shall recover from Tenant costs of suit in the sum of **\$7,014.71**.
4. The Court will issue the order after hearing.

16. 9:00 AM CASE NUMBER: L25-05639
CASE NAME: OPORTUN, INC VS. KAROL PEREZ MORA
HEARING IN RE: MOTION TO SET ASIDE DEFAULT JUDGMENT
FILED BY:

TENTATIVE RULING:

Defendant Karol Perez Mora ("Defendant") filed a Motion to Set Aside Default and Default Judgment on February 10, 2026 ("Motion to Set Aside Default"). The Motion to Set Aside Default was set for hearing on June 22, 2026.